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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, August 31, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101		
102	Ahmad v. Laguna Niguel Hyundai, 2025- 01529215	DEMURRER TO AMENDED COMPLAINT MOTION TO STRIKE AMENDED COMPLAINT Defendant Laguna Niguel Hyundai LLC demurs to the (1) first cause of action for violation of the Consumers Legal Remedies Act, (2) second cause of action for intentional misrepresentation, (3) third cause of action for concealment, (4) fourth cause of action for negligent misrepresentation, and (5) fifth cause of action for violations of the Unfair Competition Law. Defendant also moves to strike Plaintiff's allegations related to punitive damages. Plaintiff Yana Ahmad opposes both motions. The demurrer is OVERRULED as to the causes of action for violation of the Consumer Legal Remedies Act, negligent misrepresentation, and violations of the Unfair Competition Law. The complaint states sufficient facts to support each of these claims. The demurrer is SUSTAINED WITH LEAVE TO AMEND as to the second cause of action for intentional misrepresentation and third cause of action for concealment. The allegations regarding the intentional misrepresentations and concealments are not sufficiently specific in that Plaintiff fails to state who made the misrepresentations and omissions and by what means such misrepresentations and omissions were made. For the same reasons, the Motion to Strike is GRANTED WITH LEAVE TO AMEND. Defendant to give notice.

103	Alday v Orange Coast Title Company, 2024-01415025	MOTION FOR SUMMARY JUDGMENT/ADJUDICATION The Court is inclined to continue the hearing on this MSJ; the question is for how long. Alday requests a continuance under CCP § 437c(h) Trial of this case was previously continued due to the pendency of a case in Los Angeles Superior Court, Alday v. Gonzalez, 22STCV28111, to avoid inconsistent verdicts. It appears that that case is scheduled for trial on 09/21/2026. Yet Alday’s counsel declares that he has agreed with counsel for Jose Gonzalez (the defendant in the other case, and the witness whose testimony is necessary to oppose the MSJ in this case) to depose Gonzalez on 09/17/2026. The Court expects the parties to be prepared to confirm these dates. Assuming that the deposition of Mr. Gonzalez can be completed on 09/21/2026, the Court will provide the parties with dates for supplemental opposition and reply papers, and a continued date for the hearing.
104	Barretto v. Rivian Automotive, 2025-01519084	DEMURRER TO CROSS-COMPLAINT – SUSTAINED WITH LEAVE TO AMEND Cross-Defendant Universal Protection Service, LP dba Allied Universal Security Services (Universal) demurs to all four causes of action in Cross-Complainant Rivian Automotive, LLC’s (“Rivian”) Cross-Complaint (“XC”). The underlying Complaint in this action was filed by Leopoldo Barretto—an employee of Universal—who alleges he was injured in the course and scope of his employment when he slipped and fell at the premises owned and controlled by Rivian. (XC ¶¶5-6.) Barretto alleges that the premises were dangerous due to poor lighting and improper maintenance, which caused his injury. (XC ¶ 6.) Barretto did not name Universal as a defendant. Universal has submitted evidence that Barretto has initiated a workers compensation claim for his injury. (RJN, Exh. 1.) Rivian’s Cross-Complaint asserts causes of action against Universal for (1) contractual indemnity; (2)

		equitable indemnity; (3) contribution; and (4) declaratory relief. Labor Code section 3864 provides: “If an action as provided in this chapter [of the Workers’ Compensation Act] prosecuted by the employee, the employer, or both jointly against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement so to do executed prior to the injury.” Labor Code section 3864 prohibits suits against employers for reimbursement and to enforce a hold-harmless provision, and applies to suits for equitable indemnity, apportionment of fault, indemnity, and declaratory relief. (State v. Superior Court (Glovsky) (1997) 60 Cal.App.4th 659, 664; see also Privette v. Superior Court (1993) 5 Cal.4th 689, 698 [noting that third parties are precluded from obtaining equitable indemnity from employers who provide compensation coverage].) Thus, the only potentially viable claim is Rivian’s cause of action for express indemnity. As pled in the Cross-Complaint, the relevant language is found in Section 11.1 of a Master Purchase Agreement between the parties, and provides: Supplier shall defend, indemnify, and hold harmless Company and Company's Affiliates and Authorized Service Recipients and their officers, directors, employees, agents, successors, and permitted assigns (each, a ‘Company Indemnitee’) from and against all Losses arising out of or resulting from any demands, claims, suits, actions, damages, or proceedings commenced or threatened by a third party (each, an ‘Action’) to the extent caused by: (a) bodily injury, death of any person, or damage to real or tangible, personal property to the extent caused by the Products, Supplier, or any Supplier Personnel, or in any way attributable to the negligent performance of Supplier; ... (d) the wrongful acts
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		or omissions of Supplier, any Supplier Personnel[.] (XC ¶ 7.) Here, the Cross-Complaint does not allege any facts that could constitute negligence or wrongful acts or omissions by Universal. To the contrary, the Cross-Complaint alleges that “Plaintiff has filed a premises liability claim against Rivian Automotive LLC, alleging that the exterior stairway at 40 Parker was dangerous due to poor lighting and improper maintenance, which caused his injury. Plaintiff’s Complaint alleges that Cross-Complainant owned and controlled the property at 40 Parker and that the premises were unsafe for invitees due to the conditions of the stairs.” (XC ¶ 6.) Thus, no facts have been pled which would give rise to liability on the part of Universal based on the Master Purchase Agreement. Accordingly, the demurrer is sustained as to the entirety of the Cross-Complaint with 20 days leave to amend. Universal’s unopposed request for judicial notice is granted. (See Evid. Code, § 452, subds. (d), (h); Lake v. Lakewood Chiropractic Center (1993) 20 Cal.App.4th 47, 53 [workers’ compensation records].) Moving party to give notice.
105	Carranza v. Corbin Reeves Construction, 2025-01520792	DEMURRER TO COMPLAINT – SUSTAINED WITH LEAVE TO AMEND DEMURRER TO COMPLAINT – SUSTAINED WITH LEAVE TO AMEND MOTION TO STRIKE – GRANTED WITH LEAVE TO AMEND Plaintiff Boris Carranza sued numerous defendants for injuries suffered on September 11, 2024. The extent of the factual information provided by Plaintiff in the form complaint is: “Defendants, and each of them, negligently owned, occupied, and/or controlled the property located at 1801 Bayadere Terrace, Corona Del Mar, CA 92625. Defendants were negligent in the manner in which they owned, maintained, managed, leased, and operated the

	described property, allowing unguarded, concealed, and unprotected elevator, elevator opening, and/or shaft within the subject home to exist without adequate warning, thereby creating a concealed trap and dangerous condition on the subject premises. Defendants further failed to warn Plaintiff of the hazardous condition, which proximately caused Plaintiff's injuries. Defendants Kurt Fischer Structural Engineering and Derek Wavering demur to the Complaint on the ground Plaintiff failed to file and serve a certificate of merit which is required under Code of Civil Procedure section 411.35 before architects, engineers, or land surveyors are sued for professional negligence. Whether this statute applies to these defendants cannot be determined from the four corners of the complaint, making the complaint uncertain. The demurrer will be sustained with leave to amend. Defendants MA3 Corp. dba Corbin Reeves Construction and Michael D. Reeves (Reeves Defendants) demur to count two of the second cause of action, which alleges premises liability by willful failure to warn under Civil Code section 846. Plaintiff does not allege that the Reeves Defendants are owners of the property in question, nor that Plaintiff was a recreational user of the property. The Reeves Defendants contend that Count Two of the second cause of action fails to state facts sufficient to constitute a cause of action because Civil Code section 846 does not apply to these defendants and this plaintiff. Specifically, they contend that neither Corbin Reeves nor Reeves is a landowner within the meaning of Civil Code section 846, and that the Complaint pleads no facts establishing that Plaintiff was a recreational user. The demurrer will be sustained with leave to amend. The Reeves Defendants also move to strike the name "Michael David Reeves" wherever it appears in the Complaint as a named individual defendant. The Reeves Defendants contend that under California law, a corporate officer or director is not personally liable for torts committed by the corporation merely by reason of their official position or ownership interest in the
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		company, and that the Complaint contains no allegation that Reeves personally designed, directed, controlled, or performed any act at the construction site independent of his corporate role such that the references to Michael David Reeves as an individual defendant are “irrelevant” and “improper” within the meaning of Code of Civil Procedure section 436(a), and should be stricken. The complaint alleges all Defendants, including Michael David Reeves, were negligent in the manner in which they owned, maintained, managed, leased, and operated the property. The complaint does not sufficiently allege that Reeves authorized, directed, or actively participated in creating the alleged dangerous condition. The Court GRANTS the motion to strike with leave to amend. Plaintiff to file a first amended complaint within 20 days, consistent with the Court’s rulings above. Counsel for the Reeves Defendants to give notice of all rulings. On June 24, 2026, the Court ordered counsel for Plaintiff and counsel for the Reeves Defendants to meet and confer in person, by videoconference, or by telephone, and to meaningfully discuss the issues raised by the demurrer and the motion to strike with an eye toward reducing the number of issues or eliminating the need for the demurrer and/or motion to strike. The Court also ordered counsel for the Reeves Defendants to file a supplemental declaration describing the meet and confer efforts, and specifying what issue(s) was/were resolved, if any, and what issue(s) remain for the Court to resolve, if any. Said supplemental declaration was to be filed and served no later than nine (9) court days before the continued hearing date. (ROA 99.) No supplemental declaration is on file. Despite the failure to file a supplemental declaration, the Court elected to address the merits of the demurrer and motion to strike.
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106	Cruz v Carillo, 2024-01394635	MOTION FOR PARTITION OF PROPERTY Plaintiff Freddy Jonathan Cruz moves for an interlocutory judgment of partition by sale pursuant to Code of Civil Procedure section 872.010 et seq. Plaintiff also requests that a referee be appointed to conduct the sale, pursuant to Code of Civil Procedure section 873.010 et seq. In light of the mandatory settlement conference scheduled for Friday, August 28, 2026, the Court will not post a tentative ruling in this case. If the matter does not settle, the Court will provide a tentative ruling to the parties before the hearing on August 31, 2026.
107	Doe v. Goodwill of Orange County, 2023-01341615	MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT – GRANTED Defendant Sodexo Management, Inc. (Sodexo) moves for an order determining that the settlement between Plaintiff Jane Doe (Plaintiff) and Sodexo was made in good faith pursuant to Code of Civil Procedure section 877.6. Defendant Goodwill of Orange County (Goodwill) opposes the motion. The determination of a good faith settlement under section 877.6 require this Court to consider factors including: • A rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, • The amount paid in settlement, • The allocation of settlement proceeds among plaintiffs,

	• A recognition that a settlor should pay less in settlement than he would if he were found liable after a trial, • The financial conditions and insurance policy limits of settling defendants, and • The existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants, and • The settling defendant’s potential liability for indemnity to a non-settling defendant. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.) The party opposing the motion for good faith settlement bears the burden of proof. (§ 877.6(d).) “The party asserting the lack of good faith . . . should be permitted to demonstrate, if he can, that the settlement is so far ‘out of the ballpark’ in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such demonstration would establish that the proposed settlement was not a ‘settlement made in good faith’ within the terms of section 877.6.” (Tech Bilt, supra, 38 Cal.3d at p. 499-500.) Amount Paid in Settlement Plaintiff and Sodexo have reached a settlement, and provided the amount of that settlement to this Court. (Rodolff Decl., ¶¶ 3-4; Rodolff reply decl., Ex. A.) Rough Approximation of Plaintiff’s Total Recovery and Settlor’s Proportionate Liability The most important factor is the settling party’s proportionate liability. (Mattco Forge, Inc. v. Arthur Young & Co. (1995) 38 Cal.App.4th 1337, 1350.) The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor’s liability to be. (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1262.) Sodexo has provided information indicating that the mean recovery via settlement or verdict for a plaintiff alleging similar claims in Orange County is lower than
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	the amount Sodexo has agreed to settle for. (Rodolff Decl., ¶ 5.) The Court has also received copies of discovery responses explaining the nature and extent of the damages suffered by Plaintiff. (Supp. Rodolff Decl., ¶¶ 4-16, Exs. A-D.) Goodwill does not dispute the evidence as to mean recovery for a plaintiff in a sexual assault case in Orange County, and does not show that Plaintiff's recovery in this case should be higher. Goodwill's assertion that its counsel received an opening settlement demand from Plaintiff's counsel that was significantly higher for a global settlement of this matter provides no real basis for approximating Plaintiff's damages. (Hopson Decl., ¶ 9.) "[A] plaintiff's claims for damages are not determinative in finding good faith; rather, the court is called upon 'to make a "rough approximation" of what the plaintiff would actually recover' [citation], with the evaluation to be made 'on the basis of information available at the time of settlement.' [Citation.]" (Dole Food Co. Inc. v. Superior Court (2015) 242 Cal.App.4th 894, 904.) The Court finds that the settlement amount reflects Sodexo's proportionate liability, based on facts currently known, the fact that only a single cause of action was asserted against Sodexo, the limitations on Sodexo's liability because it was the employer of neither Plaintiff nor Defendant Banuelos was employed by Sodexo, the investigation of a prior sexual harassment claim which Sodexo concluded was an isolated incident between two people who had a long-term friendship, and Sodexo's lack of notice or knowledge of the assault alleged by Plaintiff.. (Rodolff Decl., ¶ 7; Miller decl., ¶¶ 4-5.) The Court finds that the settlement is within the "ballpark." Sodexo to give notice.
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108	Grant v. Bank of America	MOTION TO DEEM VEXATIOUS LITIGANT – GRANTED IN PART AND DENIED IN PART Defendant Bank of America, N.A. (“Defendant” or “BANA”) moves for an order declaring plaintiffs Gavin Grant and Michelle Grant (“Plaintiffs”) vexatious litigants, requiring them to post a security within 30 days, and prohibiting Plaintiffs from filing any new litigation in California without first obtaining leave. Defendant seeks judicial notice of the underlying Deed of Trust and various court records filed in the prior litigation actions. Plaintiffs argue judicial notice is not proper because Defendant has offered no declaration authenticating any of the exhibits attached to the request. They do not argue, however, that any of the exhibits are not what they are purported to be. Under Evidence Code section 453, Defendant is only required to furnish the Court with sufficient information to enable it to take judicial notice of the matter submitted. Defendant’s RJN provides a brief description of each exhibit and the legal authority pursuant to which judicial notice is requested. The Court finds this to be sufficient and the RJN is GRANTED. Plaintiffs’ objection to the Declaration of Emily J Wagner is SUSTAINED, as the Declaration was not executed under penalty of perjury under the laws of the State of California. (Code Civ. Proc., § 2015.5.) Defendant argues Plaintiffs are vexatious litigants because they have filed four separate other lawsuits involving the same property, none of which has survived beyond the pleading stage, re-litigating the same causes of action and issues that have already been decided. Thus, Plaintiffs should be required to post security in the amount of \$18,900 prior to proceeding with this litigation. Defendant also argues that a prefiling order against Plaintiffs should issue pursuant to Code of Civil Procedure section 391.7. Defendant relies on section 391(b)(2) and (b)(3). “[O]n a motion for an order requiring a vexatious litigant to post security, the moving party must make a showing
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	that there is no reasonable likelihood of the plaintiff prevailing in the action against that defendant. This showing is ordinarily made by the weight of the evidence but a lack of merit may also be shown by demonstrating that the plaintiff cannot prevail in the action as a matter of law.” (Golin v. Allenby (2010) 190 Cal.App.4th 616, 642.) “Sections 391, subdivision (c), 391.1, and 391.3, read in pari materia, require a vexatious litigant to post security, which includes reasonable attorney fees, when he fails to establish a reasonable probability of prevailing against the defendant.” (Singh v. Lipworth (2005) 132 Cal.App.4th 40, 45.) The entry of a prefilng order which prohibits a vexatious litigant from filing any new litigation in the courts without first obtaining leave also requires a finding that the litigant is vexatious. (See Code Civ. Proc., § 391.7(a).) Here, Plaintiffs are contesting a Notice of Trustee Sale in the foreclosure of their home by Clear Recon Corp. acting as trustee on behalf of beneficiary BANA. Plaintiffs have jointly filed one prior state court action (the 2023 action) and Gavin has separately filed two prior state court actions and one prior federal court action, all of which sought the same relief sought here: to prevent the foreclosure on their home. In granting Defendant’s Ex Parte Application for an Order Expunging Lis Pendens, the Court previously found that Plaintiffs cannot establish the probable validity of any of their claims here in light of the failure of any of their prior actions to raise a meritorious, actionable claim. On this Motion, the Court similarly finds that Plaintiffs have no reasonable likelihood in prevailing in this action against Defendant. Plaintiffs argue that their action is not barred by res judicata because they are asserting a new theory based on lack of authority and based on new wrongful conduct which occurred after the final determinations of the prior cases. This argument is not persuasive. “California’s res judicata doctrine is based upon the primary right theory” and “‘[t]he primary right is simply the plaintiff’s right to be free from the particular injury
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	suffered.’ [Citation.]” (Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904.) Here, as Judge Craig Griffin held on sustaining BANA’s Demurrer to the FAC in the 2023 action, Plaintiffs have already contended in prior litigations that they should be free from a particular injury—the initiation of foreclosure proceedings. Because this action seeks to prevent injury based on the same primary right, res judicata applies. Further, Plaintiffs’ FAC alleges that the 2017, 2018, and 2023 judgments are void for numerous reasons. (FAC ¶¶ 57-66.) These allegations demonstrate that Plaintiffs are attempting to relitigate the validity of those prior final determinations as well as the same legal issues. Thus, Plaintiffs’ argument that they are raising new issues rather than attempting to relitigate the same issues already determined falls flat and the Court finds that Gavin is a vexatious litigant. Plaintiffs’ argument that the Motion must be denied as to Michelle is, however, well taken. Michelle was only named a plaintiff in the 2023 action. Because the statutes require “repeated attempts” to relitigate, the Court finds that her filing of the instant action does not qualify her as a vexatious litigant. (See Goodrich v. Sierra Vista Regional Medical Center (2016) 246 Cal.App.4th 1260, 1266 [holding as few as three motions may form the basis for a vexatious litigant].) Thus, the Motion is GRANTED as to Gavin only. Because the Court sustained the objections to attorney Wagner’s declaration, it has no evidence before it supporting a request for security in a specific amount. In its discretion, the Court determines that \$5,000 is an appropriate amount. Thus, pursuant to Code of Civil Procedure sections 391.1 and 391.3, Gavin Grant is ORDERED to furnish security in the amount of \$18,900 within 30 days of the date of this order. Further, pursuant to Code of Civil Procedure section 381.7, Gavin Grant is prohibited from filing any new litigation in the courts of this state in propia persona without first obtaining leave of the presiding justice or
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		presiding judge of the court where the litigation is proposed to be filed. Moving party to give notice.
109	Kersten, M.D. v. Alicia Surgery Center, 2026-01553019	DEMURRER – MOOT
110	Kish v. Hyundai Motor America, 2026-01560834	MOTION TO COMPEL ARBITRATION – DENIED Defendant Hyundai Motor America (“Defendant”) moves for an order compelling plaintiff Jennifer C. Kish (“Plaintiff”) to arbitrate all claims raised in this action and staying this action pending resolution of arbitration pursuant to two arbitration clauses contained in the Owner’s Handbook & Warranty Information (Owner’s Handbook) and the Bluelink Connected Services Agreement (CSA). “ ‘Under “both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.” ’ ” (Long v. Provide Commerce, Inc. (2016) Cal.App.4th 855, 861.) “ ‘[G]eneral principles of contract law determine whether the parties have entered a binding agreement to arbitrate.’ ” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.) “ ‘Mutual assent, or consent, of the parties “is essential to the existence of a contract” [citations], and “[c]onsent is not mutual, unless the parties all agree upon the same thing in the same sense” [citation]. “Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings.” ’ ” (B.D. v. Blizzard Entertainment, Inc. (2022) 76 Cal.App.5th 931, 943 (“Blizzard”).)

		<u>The Owner's Handbook</u> While Defendant has attached a copy of the Owner's Handbook to its counsel's declaration, there is no evidence that Plaintiff received a copy during the purchase of the subject vehicle. Thus, there is no evidence that Plaintiff assented to Defendant's unexpressed understanding that Plaintiff would be bound by the arbitration agreement contained in the Owner's Handbook. Without any evidence showing that Plaintiff received a copy of the Owner's Handbook, there is no evidence of any manifestation of assent. (See <i>Blizzard</i>, 76 Cal.App.5th at pp. 943-944 [" 'In the world of paper contracting, the outward manifestation of assent to the same thing by both parties is often readily established by the offeree's receipt of the physical contract.' "].) Further, even if there was evidence presented that Plaintiff received the Owner's Handbook, " ' "an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious." ' " (<i>Sellers v. JustAnswer LLC</i> (2021) 73 Cal.App.5th 444, 461.) Here, the arbitration provision in the Owner's Manual starts at page 12 of the lengthy 48 page document and, while it begins with a paragraph that is bolded and all capitalized, the provision is not particularly conspicuous from other parts of the document. Further, while a consumer purchasing a new vehicle may reasonably anticipate that the sale comes with a warranty, a reasonable consumer is not necessarily aware that the warranty might be contractual in nature. (See <i>Norcia v. Samsung Telecommunications America, LLC</i> (2017) 845 F.3d 1279,1288 ["Language in a written warranty agreement is 'contractual' in the sense that it creates binding, legal obligations on the seller, [citation], but a warranty does not impose binding obligations on the buyer."].) In light of the above, the Court finds that mutual assent to the Owner's Handbook is lacking. (<i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293-1294 ["Mutual assent is determined under an objective
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		standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. The parties' outward manifestations must show that the parties all agreed "upon the same thing in the same sense." If there is no evidence establishing a manifestation of assent to the "same thing" by both parties, then there is no mutual consent to contract and no contract formation.'"].) <u>The CSA</u> As to the CSA, while its arbitration clause purports to apply broadly to any disputes related to the vehicle, the scope of an arbitration clause turns on whether the claims are "rooted" in the contractual relationship between the parties. (Ahern v. Asset Management Consultants, Inc. (2022) 74 Cal.App.5th 675, 692-693.) "[E]ven under a very broad arbitration provision, such as 'any controversy or claim arising out of or relating to this agreement,' " the subject claims must " "have their roots in the relationship between the parties which was created by the contract" ' before they can be deemed to fall within the scope of the arbitration provision." (Rice v. Downs (2016) 248 Cal.App.4th 175, 188.) Here, Plaintiff's causes of action do not arise out of or relate to Plaintiff's use of the Bluelink services (which include vehicle technology and service functions such as Remote Service Activation, Stolen Vehicle Recovery, and Enhanced Roadside Assistance) to which the CSA applies. Rather, Plaintiff alleges that the vehicle itself suffers from serious electrical defects and nonconformities. Thus, even though the CSA arbitration clause uses broad language, the dispute here does not fall within the provision. Moreover, the evidence presented by Defendant is insufficient to demonstrate Plaintiff's assent to arbitrate under the CSA. Defendant submits evidence that Plaintiff was presented with a screen when enrolling in the Bluelink services that would have required Plaintiff to click a box to acknowledge reading and agreeing to the Blue Link Terms & Conditions, with the term "Terms & Conditions" including a hyperlink to the CSA.
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		Plaintiff could not have enrolled without clicking the box assenting to the CSA. “[W]hen transactions occur electronically, as here, ‘the consumer is not typically provided a physical copy of the contractual terms. In that context, and in the absence of actual notice, a manifestation of assent may be inferred from the consumer’s actions . . . including, for example, checking boxes and clicking buttons—but any such action must indicate the parties’ assent to the same thing which occurs only when . . . the contractual terms were presented to the consumer in a manner that made it apparent the consumer was assenting to those very terms when checking a box or clicking on a button.’” (Doe v. Massage Envy Franchising, LLC (2022) 87 Cal.App.5th 23, 31.) “Thus, in order to establish mutual assent for the valid formation of an internet contract, a provider must first establish the contractual terms were presented to the consumer in a manner that made it apparent the consumer was assenting to those very terms when checking a box or clicking on a button.” (Sellers, 73 Cal.App.5th at p. 461.) In evaluating the sufficiency of notice, the Court must evaluate “the full context of the transaction.” (Id. at p. 477.) Massage Envy is instructive. There, the plaintiff, who had an existing membership with a massage franchise location, brought a suit against the franchisor. The franchisor moved to compel arbitration based on an arbitration clause in a “Terms of Use Agreement” to which plaintiff had given general consent while checking in for an appointment. (Id. at pp. 27-29.) The “Terms of Use Agreement” had been hyperlinked but the court found that the plaintiff had not agreed to arbitrate, noting that because she already had a preexisting contractual relationship with the independent massage location, she had no reason to believe that she was entering into another contractual relationship with the franchisor during the check-in process. (Id. at p. 31.) Similarly, in Herzog, the court held that there was no agreement to arbitrate as part of the plaintiffs’ use of an app, despite the fact that the installation of the app required a user to click a button stating that they agree to the Terms of Use, where “Terms of Use” included a
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		hyperlink. (101 Cal.App.5th at p. 1290.) Relying on Massage Envy, the Herzog court explained: “here, the G6 App launch was a transaction separate from the transactions the user had already completed in order to acquire the Dexcom G6. Users would have no reason to anticipate encountering during the app launch new contractual terms governing their use of the Dexcom G6, a device they had already acquired with their medical provider's prescription.” (Id. at p. 1300.) Here, the enrollment in Bluelink services was a separate transaction from the purchase of the vehicle and Plaintiff’s acquisition of an express warranty. Consumers would have no reason to anticipate that the CSA to which they agree would govern their claims regarding the vehicle in general, including warranty claims, when they had already acquired the express warranty in a separate transaction. Further, nothing about the screen presented to consumers upon enrollment in Bluelink services would give consumers reasonable notice that the CSA Terms & Conditions would apply to the vehicle as a whole rather than only to the Bluelink services. In light of all the above, Defendant has failed to show that Plaintiff’s causes of action related to nonconformities and electrical defects in the subject vehicle fall within the scope of the arbitration agreement in the CSA or that Plaintiff assented to the agreement to arbitrate. Thus, the Motion to Compel Arbitration is DENIED. Defendant’s unopposed Request for Judicial Notice of the Complaint in this action is GRANTED. (Evid. Code, § 452(d).) Defendant to give notice.
111	Premier Liberty Development v. Nguyen, 2018-01008782	MOTION FOR SUMMARY JUDGMENT/ADJUDICATION – The Court will not issue a tentative on this motion. Additionally, the parties are advised that the Court has not yet issued an order on Premier’s motion for summary judgment, the hearing on which was held August 24.

112	Robicheaux v. Rowshan, 2022-01261647	DEMURRER TO ANSWER – OVERRULED Defendants and Cross-Complainants Kasra Rowshan, Newport Care Medical Group, Inc., Newport Care MSO, LLC, Linden Properties, LLC, Old Newport Group, LLC, and Top Surgical, LLC demur to all twenty four affirmative defense in Plaintiff and Cross-Defendant Grant Robicheaux’s First Amended Answer to the Second Amended Cross-Complaint. The court could deny the demurrer as untimely. (CCP, §§ 12a(a), 471.5, & 1010.6(a)(3)(B).) The Court will instead exercise its broad discretion to consider the demurrer, and the opposition thereto, which also appears to have been filed late. On the merits, with regard to the general demurrer to all affirmative defenses on grounds on they fail to plead ultimate facts, or do not specify to which cause of action they are directed, “[n]o error or defect in a pleading is to be regarded unless it affects substantial rights.” (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.) “The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (Id.) There can be no serious argument that the parties do not have notice of the claims and defenses being asserted. With regard to the argument that Plaintiff/Cross-defendant is judicially estopped from asserting the 24th affirmative defense of release, the Court has never accepted as true Robicheaux’s argument that the “Release does not apply to the disputed allegations.” Rather, the Court has only determined that such a conclusion would be a fact that must be determined by the jury. As such, the affirmative defense of release is not barred by the doctrine of judicial estoppel. Moving party to give notice.
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113	Salemi v. First National Bank Texas, 2025-01536388	MOTION FOR RECONSIDERATION – DENIED Plaintiff Brian Thomas Salemi (“Plaintiff”) moves for reconsideration of the Court’s order granting defendant First National Bank Texas dba First Convenience Bank’s (“Defendant”) Motion to Compel Arbitration. Code of Civil Procedure section 1008(a) provides: “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” “According to the plain language of the statute, a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon ‘new or different facts, circumstances, or law.’ ” (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.) “A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time.” (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212.) Plaintiff argues that new and different facts and circumstances show that Defendant failed to prove the existence of a valid agreement to arbitrate. Plaintiff contends that the driver’s license number on the Signature Card for the subject account is not his driver’s license number and Defendant has provided no evidence proving who presented the invalid identification. Plaintiff contends Defendant has not produced competent evidence proving that it was Plaintiff who used fraudulent identification and signed the Signature Card or knowingly assented to arbitration. Plaintiff contends that Defendant’s own fraud theory presents
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	foundation questions regarding who presented the invalid identification. Defendant argues the facts offered by Plaintiff are not new within the meaning of section 1008. Rather, Plaintiff relies on the Signature Card but the Signature Card was submitted with Defendant's original declaration and Plaintiff had a full and fair opportunity to review it before filing his opposition. Defendant argues that Plaintiff necessarily knew before the April 27, 2026 hearing whether he contended that he signed the Signature Card or assented to the agreement and he cannot now supply a declaration regarding those issues without a satisfactory explanation as to why the assertions were not made earlier. Defendant further argues that the Court already considered Plaintiff's argument that no valid contract could exist if Plaintiff used fraudulent identification and rejected it. In support of the Motion for Reconsideration, Plaintiff submits his own declaration in which he asserts he did not sign the Signature Card relied upon by Defendant or authorize anyone to sign it on his behalf. The Signature Card was attached to Defendant's original Motion to Compel Arbitration and Plaintiff has provided no explanation as to why a declaration with the same assertion that he did not sign the Signature Card could not have been filed with his opposition to that prior motion. Thus, his declaration does not constitute "new or different facts" for purposes of section 1008. (Hennigan v. White (2011) 199 Cal.App.4th 395, 405-406.) Similarly, Plaintiff provides no explanation as to why his arguments that the documents relied upon by Defendant were not properly authenticated or that Defendant did not adequately prove that Plaintiff personally signed the account-opening documents could not have been presented earlier. Again, to the extent Plaintiff disputes signing the Signature Card, he could have and should have provided evidence in support of his contention earlier. Plaintiff's argument that Defendant's fraud theory is legally insufficient and does not establish the existence of an arbitration agreement was already raised by
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		Plaintiff and considered and rejected by the Court in its ruling on the Motion to Compel Arbitration. The Court previously held that fraud in the inducement will not render an arbitration agreement unenforceable if the fraud does not specifically go to the making of the agreement to arbitrate itself. Thus, the fact that Defendant is arguing that Plaintiff misrepresented information in connection with opening the account does not mean the agreement to arbitrate is unenforceable. Plaintiff argues that Defendant improperly refused to provide substantive responses to his interrogatories before his time to oppose the Motion to Compel Arbitration. Again, this fact could have been raised in Plaintiff's prior opposition. Plaintiff makes reference to the fact that Defendant's supplemental responses identify the alleged agreement documents as the Deposit Agreement, Funds Availability Policy, and Signature Card but Plaintiff offers no explanation as to how this supplemental response warrants reconsideration of the Court's order. Plaintiff also states that Defendant claims in its supplemental responses that Plaintiff breached the Deposit Agreement by misrepresenting information when the account was opened. Again, Plaintiff offers no explanation as to how this response warrants reconsideration and, as discussed above, any fraud that occurred when the account was opened would not render the arbitration agreement unenforceable. Moving party to give notice.
114	Selene Finance v. Kirton, 2024-01412902	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT – CONTINUED DUE TO PENDENCY OF APPEAL The hearing on Plaintiff Selene Finance, LP's renewed motion for leave to file a First Amended Complaint is CONTINUED to OCTOBER 12, 2026, at 9:00 a.m. in Department N14. No further briefing will be permitted. The Court finds that the proposed amendments to the Complaint are embraced by the pending appeal. A petition for review is pending before the California Supreme Court (S297655).

		The court notes that it “has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown.” (Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 175.) “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) CASE MANAGEMENT CONFERENCE CURRENTLY SCHEDULED FOR 09/21/2026 IS CONTINUED TO 12/07/2026 at 1:30 p.m. Clerk to give notice.
115	Torossian v. Jalali-Bidgoli, 2025-01493940	MOTION TO SET ASIDE/VACATE DISMISSAL – GRANTED WITH CONDITIONS Plaintiff Jack Torossian, proceeding in pro per, moves pursuant to Code of Civil Procedure section 473(b) for an order vacating the dismissal entered on 04/27/2026. The dismissal was entered when Plaintiff failed to appear at a hearing on an OSC to dismiss for failure to appear at a previous hearing. Plaintiff argues that the “dismissal resulted from mistake, inadvertence, and excusable neglect arising from overlapping and continued litigation proceedings, calendaring confusion caused by the Court’s continuance of operative discovery matters, and an incomplete procedural picture concerning the active prosecution status of this matter at the time dismissal was entered.” Defendant Sharmin Jalali Bidgoli, proceeding in pro per, opposes the motion, arguing that a “litigant who is ordered to appear and explain why his case should not be dismissed, and who then fails to appear, has not made an excusable mistake.” “The law favors resolution of cases on their merits, and because it does, any doubts about whether Code of Civil Procedure section 473 relief should be granted must be resolved in favor of the party seeking relief from default. Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial

	on the merits.” (Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 685; Lasalle v. Vogel (2019) 36 Cal.App.5th 127, 134.) Here, Plaintiff was diligent in requesting relief from the Court immediately after the dismissal was entered. Given the strong public policy in favor of hearing cases on their merits, the Court will GRANT the request to vacate the dismissal. However, the Court has the ability to condition its order. First, the Court will impose a monetary sanction against Plaintiff Jack Torossian in the amount of \$100, payable to the Court within 15 days, for failing to appear at a properly noticed case management conference and failing to appear at a properly notice hearing on an order to show cause for failure to appear. Second, the informal discovery conference and order to show cause which were removed from the Court’s calendar upon dismissal of the case are reset for 09/30/2026 at 9:00 a.m. in Dept. CM02. The requirements of the Court’s 04/14/2026 minute order are reinstated with respect to a joint letter brief, in person appearances, etc. Moving forward, Plaintiff must be diligent in keeping abreast of the case’s schedule and seek clarification when needed. Plaintiff is also encouraged to retain counsel. Plaintiff is not justified attending other matters (such as, scheduled coursework at Cypress College). Plaintiff initiated this lawsuit and must actively participate in it, including responding to discovery and attending hearings. Any scheduling conflict that Plaintiff may experience must be addressed at a hearing or on a noticed motion. Plaintiff’s failure to participate in discovery and appear for hearings will not be tolerated and Defendant and the Court may move for terminating sanctions should such conduct persist following this order. The Court further notes that Plaintiff must serve all documents filed pursuant to code. Service must be completed by an individual who is 18 years of age and not a party to this action. In serving this motion, Plaintiff effectuated service, which is not proper under
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		the code. (See POS-040; Code Civ. Proc., §§ 1011, 1013, 1013a.) Plaintiff to give notice.
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